

Protection of personal data policy

Last updated: 7 August 2026

What is Smart Cube's role in the protection of your privacy?

The protection of personal data policy (hereafter the "**Privacy Policy**") governs the manner according to which Smart Cube, whose registered office is located at 30 rue de la Montée, Berchem L-3321, registered with the Luxembourg Trade and Companies Registry under number LU26561741 and/or its affiliated companies (hereafter the "**Affiliates**") (collectively designated "**Smart Cube**"), collect, use, process and/or communicate personal data of natural persons (such as "**Prospects**", "**Customers**" or "**Users**" or "**Professionals**"¹) in relation to the installation of equipment and provision of technical services in the energy sector and/or the use of websites, mobile applications, and digital services of each concerned entity (collectively referred as the "**Services**").

Smart Cube together with its Affiliates carries out an activity of sale and installation of equipment, facility management, and the provision of technical services in the sectors of construction, professional lighting, energy management and distribution, electromobility, and energy efficiency. The Services also encompass services such as access to and management of the customer portal, customer accounts, organization of commercial and marketing operations, the management of Users' and Customers' feedback as well as communication with Clients, Professionals, and, more generally, Users.

Within the framework of the Privacy Policy, Smart Cube acts as data controller ("**Data Controller**"). The Privacy Policy aims to provide transparency about your personal data either collected directly from you or indirectly, notably coming from publicly available sources.

Some information may also come from publicly available sources. We share certain data with service providers ("**Data Processors**") in relation to our service activities and/or with third parties like supervisory authority to comply with legal and regulatory obligations but also to prevent fraud and to handle in the best manner Customer's requests, complaints and any possible disputes.

We process your personal data as part of the conclusion and execution of your contracts and to better handle your requests, complaints, and any potential disputes. We share certain data with technical service providers ("**Data Processors**") based on your consent and/or with third parties to comply with the Law.

We inform you that we recently updated our Privacy Policy concerning the concept of legitimate interests, the type of data collected, for which purposes and on which legal basis (cf. the Schedule below) and concerning the retention periods and concerning the usage of artificial intelligence.

Our commitment to comply with data protection Law

Smart Cube and its Affiliates acknowledge and undertake to comply with the national laws and regulations applicable to the protection of personal data (the "**Law**"), and with the Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (the "**GDPR**").

¹ Professionals refer to the craftsmen, technicians, and/or electricians with whom Smart Cube and its subsidiaries work.

Your points of contact

As Data Controller, Smart Cube considers the protection of your personal data to be of great importance and has appointed a data protection officer (hereafter the “DPO”) that you can contact for any questions you may have. Each Affiliate has also appointed a DPO when necessary. The main role of our DPO is to ensure that personal data of our Employees, Prospects, Customers, Professionals and generally speaking of Users are processed in compliance with the Law and the GDPR within the framework of the activities carried out by the concerned Affiliate.

For any questions about the processing of your personal data, please feel free to contact the DPO of Smart Cube or of the relevant Affiliates at the following addresses:

- by post: Smart Cube Sàrl ,
30 rue de la Montée
L-3321 Berchem
Luxembourg
- or by phone: (+352) [621 257 775](tel:+352621257775)
- DPO at the following address: dpo@smartcube.lu

How to stay involved in the treatment of your personal data?

We invite you to read this Privacy Policy. If you are already in contact with Smart Cube or Customer of an Affiliate, please also check the contracts by which you are bound because they may contain further details on how we collect and process your data.

Please note that these personal data will only be used for the specific reason for which they were transmitted. This Privacy Policy is provided for information purposes: it explains how we process your personal data and on what legal basis. It is not a request for your consent. Where we rely on your consent, we will always ask for it separately, by a clear affirmative action, and you may withdraw it at any time.

When and how do we collect data?

As from your first interaction with us, our Subsidiaries or with third parties, personal data are collected through various digital channels (by email, by navigating on our web sites or through social media) and by correspondence in writing (letter, messages) or verbally/visually (during a physical/online meeting or by telephone, video call). The Privacy Policy is applicable regardless of the communication channel or the method used to collect your data.

Data provided by you and collected by Smart Cube or the relevant Affiliate(s)

You browse any page of our websites
You place a request for any of our products/services
You sign a contract for specific products/services
You create a user account.

You buy/purchase, use or and/or are supplied with our products/services
You are invoiced for our products/services
You pay an invoice.
You contact us for any kind of customer service or support.
Optional: By opting-in, you can give us your clear and explicit consent to process your personal data for a specific purpose (marketing, newsletter, digital onboarding, customer portal)

Data we receive from others

We do not always receive your personal data directly from you. We may also obtain it from property managers, syndics, building owners and landlords who register buildings, units and their occupants on our platform; from our Affiliates and from our technical partners, installers and subcontractors; from meters, sensors and connected equipment installed in your building; from payment service providers and, where applicable, fraud prevention agencies; and from publicly available sources such as company registers and public directories.

Where we obtain your personal data from someone other than you, we will inform you within one month of obtaining it, or at the latest when we first communicate with you, unless you already have that information or the law provides otherwise.

The Schedule below provides more details about the type of data we collect, for which purposes and the legal basis on which we process your personal data.

Category of Personal Data	Purpose of Processing
1. Account Information (Full name, email address, phone number, role within the building, password)	To create, verify, and manage user accounts; provide access to the Cubii platform; authenticate user identity.
2. Building and Unit Information (Building name, unit number, associated property manager, resident or provider)	To associate users with their respective buildings or units and enable correct access to features and information.
3. Ticket, Maintenance and Documents Data (Issue descriptions, attached files or photos, comments, timestamps, documentation)	To manage maintenance and service requests between residents, managers, and providers.
4. Communication Data (In-app messages, notifications, support emails)	To facilitate communication between users and between users and Cubii's support team.

5. Device and Technical Data (Device type, operating system, app version, IP address, crash logs)	To ensure application security, diagnose technical issues, and maintain compatibility across devices.
6. Usage and Analytics Data (Feature usage statistics, interaction data, frequency of access, aggregated behavioural trends)	To analyze usage trends, improve the application, and enhance user experience; to generate anonymized or aggregated statistical data. We do not sell your personal data.
7. Advertising and Marketing Data (Interests, interaction history, in-app preferences, cookie identifiers, device advertising ID)	To provide personalized content and promotional offers aligned with user interests, where you have opted in. We do not sell your personal data and we do not share it with advertising partners for their own purposes.
8. Payment and Subscription Data (Billing name, payment method, transaction ID, VAT number)	To process payments, issue invoices, and manage subscription accounts.
9. Security and Access Logs (Login times, access IPs, failed login attempts)	To prevent unauthorized access, detect fraud, and maintain system integrity.
10. Support and Feedback Data (Emails, support tickets, surveys, app feedback)	To respond to user inquiries, improve services, and collect feedback.

What are our “legal bases” for processing your data?

In the framework of our activities, we collect and process several types of personal data depending on the offers and services you have subscribed to and the forms you have filled-in on our websites. This processing is based on one of the following legal bases:

a. Contract: We process your personal data within the extent it is necessary to execute the contract you have entered with us and/or for the needs of the pre-contractual relationships.

b. Consent: We process your data on the basis of a clear and explicit consent (by ticking the box or clicking) that you have given to us for a specific purpose.

You can change your mind! If you have previously given consent to the processing of your personal data, you can freely withdraw such consent at any time by sending an email to the DPO at the email address provided on page 2 of the Privacy Policy. Once available, you may also update your preferences directly in your Cubii account settings.

If you withdraw your consent, and if we do not have another legal basis for processing your personal data, then we will stop processing such data. If we have another legal basis for processing your data, we will limit our processing to what is strictly necessary with regard to the purpose of the concerned treatment.

c. Legitimate interests : In the following cases, we process your data on the basis of our legitimate interests within the limits of what you can reasonably expect in the interactions with us or with the relevant Subsidiary and as long as there is no other legal basis for such processing. Our legitimate interests are:

- gaining insights to identify your needs regarding equipment or technical services related to energy,
- gaining insights from your energy needs and your global consumption behaviour at home,
- gaining insights from your building equipment,
- helping to adapt consumption behaviour, patterns as well as optimising the intelligence of home management systems, also with the help of artificial intelligence
- provide, develop, and improve products and services provided by Smart Cube and/or its Affiliates,
- enabling us to enhance, customise or improve the User's experience as a Customer or as a Professional,
- improve the quality of our services and the training of our employees as well as Affiliates,
- delivering, developing, and improving Smart Cube's products and services,
- strengthen and enhancing data security.

In each case, we ensure to find a balance between your rights and our legitimate interests. For more information about such balancing, you can contact the DPO by email

Your right to object: where we process your personal data on the basis of our legitimate interests, you have the right to object at any time, on grounds relating to your particular situation, by contacting the DPO at dpo@smartcube.lu. Where you object to processing for direct marketing purposes, including any related profiling, we will stop that processing immediately and unconditionally.

d. Law : We process your personal data in accordance with the Law and the legislation applicable to the relevant fields of activity of each Affiliate.

How and why do we process your data?

In the schedule below, you will find the detail of (i) the categories of personal data that we collect, (ii) the purposes for which we process such data, (iii) the legal basis associated with each purpose.

When collecting data, we indicate which information is mandatory or necessary for the conclusion of the contract. Failure to provide such data will prevent us from entering into a contract with you. Optional information is indicated as "optional".

Context	Type of personal data ²	Purposes of the processing	Legal basis
Browsing on our websites and using our digital spaces	➤ Technical and usage data: your IP address, which is truncated so that it can no longer be attributed to you, together with anonymised statistics on the pages viewed and the browser and device used.	▪ For statistics purposes on the usage of our websites and digital spaces, to improve user's experience and obtain activity indicators	- General Terms of Use
Browsing on our websites and using our digital spaces	➤ Cookies	▪ To improve our websites design, content and usage	- Cookies Policy Based on the consent (Opt-in) given by the user (incognito, medium or full experience)
Provision of services to Affiliates	➤ Cookies	▪ To improve our websites design, content and usage For the management of technical services (use of platforms, IT tools, etc.)	- Cookies Policy - Based on the consent (Opt-in) given by the user (incognito, medium or full experience)
External growth operations	➤ - Information about the target company (employees, clients, partners, etc.)	By Smart Cube : ▪ For preliminary analysis and audits for acquisition operations of companies, client portfolios, and/or contracts	- Confidentiality Agreement - Pre-contractual information - Conclusion and execution of a contract (letter of intent, sales agreement, etc.)
Commercial activities	➤ Customer Identification data ➤ Customer Communication data	▪ Marketing operations as authorized by regulations (excluding notably operations by email or SMS which necessitates consent) ▪ Marketing operations based on your consent: ▫ Invitation to conference or events organized by Smart Cube or one of its Affiliates ▫ To receive newsletters, information, update, special offers or promotional offers on our products and services ▫ To receive information on our new products/services ▫ To receive electronic offers from our technical and commercial partners (craftsmen, installers, insurers, banks, and electronic vehicle rental companies). ▪ To provide advice on energy efficiency measures.	- Legitimate interests (economic and commercial) - Consent (Opt-in)
Request an offer/ Enter into a service contract(s)	➤ Customer Identification data ➤ Customer Communication data ➤ Customer Contract data	▪ To identify you and check your personal information ▪ To determine your category of customer (i.e., final client or active client as defined by regulation in force ³) ▪ To elaborate and propose a commercial offer ▪ To conclude a service agreement through a signature process ▪ To create a customer account in our systems and provide access to your profile and data ▪ To communicate with Affiliates such as technical partners and sub-contractors, cloud operators and regulatory authority	- General Terms of Use - Privacy Policy - Performance of a contract - Performance of a contract (mandate given by you) - Legal obligations as defined by the regulator/law (competent authority)
	➤ Customer Identification data ➤ Customer Communication data	▪ To provide you with an access to our customer portal/market place/application	- Legitimate interests

² The content of the data categories (Customer Identification, Customer Communication, Contractual, Delivery Point, etc.) are defined by the Encevo Group's internal policies.

³ According to the Electricity Law dated June 9th, 2023, an active client is an end-customer or a group of end-customers acting jointly, which consumes, or stores electricity produced on its/their premises, or which sells its/their self-produced electricity and/or participates in flexibility or energy efficiency programs provided such activities are not its main commercial or professional activity.

	➤ Housing data (characteristics and electrical equipment)	▪ To assess average future consumption to propose the best (future) product fit. ▪ To be able to provide more precise energy consumption insights to the customer	- Based on your Opt-in (Consent)
Execution/Optimisation of the service contract(s)	➤ Customer Identification data ➤ Customer Communication data ➤ Customer Contract data ➤ Point of Delivery data ➤ Metering/Sensor data ➤ Invoicing data ➤ Financial data/KYC data	▪ To establish energy consumption forecast enabling optimisation of energy consumption/production as well as flux optimisation within your building, house, premises ▪ To evaluate and advice you on overall consumption, production optimisation as well as building usage/smart home management ▪ To put energy consumption data at your disposal ▪ To issue invoices on a regular basis ▪ To collect payment by manual means (transfer, credit card or cash) or by automatic electronic transfer (SEPA) ▪ To perform dunning activities with bailiff and escalation processes in accordance with regulations ▪ To manage pre-litigation and litigation with customers, third parties, local authority(ies), administration (etc.) in case of an administrative or judicial proceedings ▪ To prevent and fight against fraud and corruption	- General Terms of Use - Privacy Policy - Performance of a contract - Legitimate interests (economic and commercial) - Legitimate interests (enforcing our rights and defending our interests) - Legal obligations
Creation of customer account - Application CUBII	➤ Customer Identification data ➤ Customer Communication data	▪ To authenticate the unique user ▪ To match and lock one client account with one unique user ▪ To secure your online access and personal application access	- General Terms of Use - Privacy Policy - Performance of a contract - Legitimate interests (economic and commercial) - Legitimate interests (enforcing our rights and defending our interests) - Legal obligations
Management Marketplace – Residential/Non-Residential Housing	➤ Customer Identification data ➤ Customer Communication data	▪ Based on your consent (Opt-in), which you can withdraw at any time, to obtain your exact geolocation data ▪ To identify the exact location of your building ▪ To receive instant, automatic alarms from contact detectors, video surveillance, installed cameras (intrusion, heating, water leakage, drop of pressure, air quality etc.) ▪ To register, visualise, treat, process your incident, service demand ▪ To track and follow your ticket status ▪ To provide and match user demand (ticket) and service provider solution(s)/service(s) ▪ To ensure a fluent communication between all involved parties per ticket ▪ To track, evaluate and optimise your ticket related service (service providers, Affiliates performance) ▪ To provide cloud services such as archiving	- General Terms of Use - Privacy Policy - Performance of a contract - Legitimate interests (economic and commercial) - Legitimate interests (enforcing our rights and defending our interests) - Legal obligations
Management & Optimisation – Residential/Non-Residential Housing	➤ Customer Identification data ➤ Customer Communication data	▪ To access, analyse your exact and registered data (meter data, sensor data, camera data, voice recording, video recording, voice/video calls, messages, in room detection, consumption patterns) ▪ To match and identify the exact location of your building and all connected appliances ▪ To register, visualise, treat, process your collected data (all installed meters, sensors, PV production/self-consumption/grid injection/sharing, home charging station, batterie usage, ticket history, ...)	- Based on your Opt-in (Consent) - General Terms of Use - Privacy Policy - Performance of a contract - Legitimate interests (economic and commercial) - Legitimate interests (enforcing our rights and defending our interests)
Exchange and communication with our internal services, Affiliates	➤ Customer Identification data ➤ Customer Communication data ➤ Customer Contract data	▪ To manage your request ▪ To personalize communication with you and facilitate the execution of the contract ▪ To improve the user's experience on our digital spaces ▪ To improve the quality of our answers and services, internal process and management of requests by the Affiliates– See below information about AI ▪ To respond to your requests and manage the exercise of your rights as data subjects	- Performance of a contract - Legitimate interests (economic and commercial) - Legitimate interests (to provide a quality service and internal training) - Legal obligations

		- To improve the employee training of our service providers as well as internal staff - To realize satisfaction surveys	- Legitimate interests (economic and commercial)
Sales of equipment (heating/cooling, ventilation, sanitation, lighting) Sales of equipment in renewable energies (charging stations, solar panels, heat pumps, LED) Technical services related to energy	➤ Identification Data ➤ Communication Data ➤ Contractual Data ➤ Billing Data ➤ Financial Data ➤	- To identify and process your request - To provide you with a quote/commercial offer - To conclude and execute a service contract (installation, works, etc.) - To communicate with technical partners and subcontractors - To participate in tenders and submit an offer matching the catalogue of requirements - To create a customer account allowing access to your user profile (optional) - For billing - To collect payments, manage and recover payments - To manage disputes and amicable resolutions - To combat fraud and corruption	- Privacy Policy - Pre-contractual information - Conclusion and execution of a contract - Legitimate interests (economic and commercial) - Legitimate interests (enforce our rights and defend our interests)
Energy consulting	➤ Communication Data ➤ Consumption Data	- To analyse your energy consumption (audit, energy efficiency diagnosis) - To advise you on energy efficiency measures, perform monitoring, and prepare the grant application	- Execution of a contract - Based on your Opt-in (consent)

What about usage of Artificial Intelligence (AI)?

At Smart Cube, we are dedicated to using Artificial Intelligence (AI) transparently, responsibly and in compliance with the GDPR, the Regulation (EU) 2024/1689 of June 13th, 2024 (AI Act) and the principles set out in this privacy policy to ensure that the use of this technology –respects your fundamental rights and freedoms.

More specifically, as part of the continuous improvement of our services, we are using AI as an assistant to the Customer Service Center (CSC) agents. This AI helps to manage the flow of requests by analysing the content, categorizing according to the nature and assessing the level of criticality of your requests. AI can generate a response proposal which is systematically reviewed and modified, if necessary, by a human agent. This tool aims to provide preliminary, accurate and rapid responses to your requests, while guaranteeing systematic human control.

It is essential for SmartCube to ensure that the impact of the use of AI on the processing of your personal data is limited and controlled by ensuring that the following principles are applied:

- **Data Privacy & Human Oversight:** the AI provides assistance in handling your requests under human supervision.
- **The personal data:** Customer Identification Data and Communication Data are used solely to enable your requests to be processed; personal data are not stored nor exploited by the AI and they are not used for the purposes of learning or optimising the algorithm.
- **Transparency:** Our AI is designed to train and support the CSC agents only (strictly internal usage). No personal data is being exchanged with external parties during this process.
- **Profiling & Automated Decision-Making:** The AI assistant used by our Customer Service Centre does not take automated decisions about you, and all responses it generates are subject to human verification. We do carry out profiling elsewhere in our Services, as described in the section “Do we use profiling and automated decision-making?” below.
- **Fairness & Accountability:** Our AI is designed to be fair, minimizing bias and ensuring that process is conducted based on objective criteria.

- **Retention:** The personal data used along the process to assist CSC agents is only retained for the time necessary by the agent to process your request.

If you have any questions about the use of AI regarding the CSC and the management of your personal data, you can contact our Data Protection Officer (DPO) at the following address: dpo@smartcube.lu

Do we use profiling and automated decision-making?

Yes, in a limited way. To offer you services that match your actual needs, we analyse information such as your energy consumption patterns, the equipment installed in your building, and the history and recurrence of the incidents you report. This allows us to suggest relevant services, maintenance or energy efficiency measures, to anticipate recurring problems and to prioritise support.

This analysis constitutes profiling within the meaning of the GDPR. We carry it out on the basis of your consent (Opt-in), which you give in the Cubii application and which you can withdraw at any time in your account settings or by contacting the DPO.

We do not take decisions producing legal effects concerning you, or similarly significantly affecting you, based solely on automated processing. Our recommendations are suggestions only: a person decides on any measure affecting your contract, your invoicing or the provision of a service. You may at any time object to this profiling, request human review of a recommendation, express your point of view and contest the outcome, by contacting the DPO at dpo@smartcube.lu.

We do not use profiling for advertising purposes and we do not profile children.

What about sensitive data?

We don't collect any sensitive data as defined by the GDPR (like racial or ethnic origin, political opinions, religious/philosophical beliefs, trade union membership, genetic data, biometric data, health data, data about your sexual life or orientation, and offences or alleged offences).

Some of our Services involve cameras, sensors, voice or video recordings and in-room detection. This material is used only to operate the service you have requested (for example security alerts, incident handling and support calls). It is not analysed to identify you by reference to your physical, physiological or behavioural characteristics, and we therefore do not process biometric data within the meaning of the GDPR. Please do not send us sensitive data when you contact us; if you do, we will delete it unless we are legally required to retain it.

What about children's data?

Our Services are intended for adults. However, because our Services are delivered in homes and buildings, we may process a limited amount of personal data relating to children – for example where a child is a member of a household covered by a Cubii account, appears in a security alert, or is named by a parent or guardian in a support request.

Where we rely on consent and the person concerned is under 16 years of age, that consent must be given or authorised by the holder of parental responsibility, in accordance with the GDPR as applied in Luxembourg. An account in the Cubii application may only be created by a person aged 16 or over, or by a parent or legal guardian on a child's behalf.

We never sell personal data relating to children, we do not use it for advertising or marketing purposes, and we do not use it for profiling. We retain it for no longer than is necessary for the purpose for which it was provided.

If you believe that we hold data relating to a child without the necessary authorisation, please contact our DPO at dpo@smartcube.lu and we will delete it without undue delay.

What are your privacy rights?

You have personal rights regarding your data that you can exercise in accordance with the Law and the GDPR, including a right of access, a right to rectification, a right to erasure (also known as the “right to be forgotten”), a right to restrict processing, a right to object, a right to data portability, and the rights described above in relation to profiling.

If you want to exercise or get more explanation about any of these rights, please contact the Data Protection Officer at the following address: dpo@smartcube.lu. We will answer you within a reasonable delay, not exceeding one month as from the date of your request.

Such right can be exercised to the extent it does not adversely affect the rights and freedoms of others. Under certain circumstances, some rights such as the right to be forgotten or the portability right can be exercised subject to conditions, for example, they shall not prevent the execution of ongoing contracts or prevent us from complying with our obligations or obstructing any possible legal proceedings.

In such cases, we will provide you with any further explanation which might be relevant to you.

a. You have the right to access to the personal data we or the relevant Affiliate holds about you. Please refer to the Schedule above. You can ask us whether your personal data is being processed or not and request further details about the processing of your data.

b. You have the right to request an update, an addition or a correction of any personal data which is inaccurate, incomplete, or wrong. Please inform us about any update or inaccuracy you may have noticed by sending an email at dpo@smartcube.lu or at the address of the DPO indicated in the above-mentioned schedule.

c. You can request the erasure of your personal data under certain circumstances. This right may be subject to limitations as mentioned above.

d. You can ask the restriction of processing of your personal data under certain circumstances. This right means that the treatment we operate on your personal data is limited, so that we can retain some data, but we cannot use or process them for any other purpose(s).

e. You have the right to object to the processing of your personal data where we process it on the basis of our legitimate interests, on grounds relating to your particular situation. Where you object to processing for direct marketing purposes, including any related profiling, we will stop that processing immediately and unconditionally. For other processing based on legitimate interests, we will stop unless we can demonstrate compelling legitimate grounds which override your interests, rights and freedoms, or the processing is needed to establish, exercise or defend legal claims.

f. You have the right to ask for the portability of your personal data carried out by automated means. You can request to receive directly your personal data in a structured commonly used and machine-readable format. The data will be provided to you in a structured, commonly used and machine-readable format (CSV) so that you can transmit it to another controller and/or where technically feasible, your personal data will be transmitted directly to another controller.

Such right can be exercised to the extent it does not adversely affect the rights and freedoms of others. In such case, we will provide you with any further explanation which might be relevant to you.

g. You have the right to lodge a complaint with the relevant supervisory authority, i.e. the “Commission Nationale de Protection des Données (‘‘CNPD’’).

We provide several channels to exercise your rights so that you can choose the more convenient to you. For any questions/concerns, please contact us at the following addresses so that you have a chance to address your request in the best delay:

by post: Smart Cube Sàrl to the attention of the DPO
30 rue de la Montée, Berchem
L-3321 Luxembourg

- by email: info@smartcube.lu
- By contacting directly the DPO: dpo@smartcube.lu

How do we secure the data we collect?

Smart Cube and its Affiliates have implemented appropriate physical, technical, and organizational security measures to protect your personal data against unauthorised access, alteration, disclosure, theft, destruction or other accidental or unlawful forms of processing in accordance with the Law, GDPR and generally accepted standards of technology and operational security.

We have set-up internal security policies, and we require our Data Processors to comply with the Law and GDPR. They are bound by contractual obligations related to confidentiality, processing and security measures to prevent unauthorised access, use, theft, destruction and disclosure of personal data.

Security issues being a general matter concerning everyone, we advise you to remain vigilant and take any useful or necessary precaution to guarantee the confidentiality of your password and your access code to the customer account.

What happens in the event of a personal data breach?

Despite the measures described above, no system can be guaranteed to be entirely secure. If a personal data breach occurs, we will document it, assess the risk it presents to you, and take immediate steps to contain it and limit its consequences.

Where the breach is likely to result in a risk to your rights and freedoms, we will notify the Commission Nationale pour la Protection des Données (CNPD) without undue delay and, where feasible, within 72 hours of becoming aware of it. Where the breach is likely to result in a high risk to your rights and freedoms, we will also inform you directly and without undue delay, describing the nature of the breach, its likely consequences, the measures we have taken, and the steps you can take to protect yourself.

Where a breach occurs at one of our Data Processors, they are contractually required to notify us without undue delay so that we can meet these obligations.

How do we store and transfer your personal data?

Your personal data are stored with the European Union either by our organization or by our service providers (Data Processors).

In the event a transfer of personal data outside the European Union or outside the European Economic Area (EEA) is contemplated, such transfer will only take place provided the appropriate safeguards provided by articles 44 to 47 of the GDPR are in place, i.e. :

- If there is an adequacy decision issued by the European Commission recognizing that the country of the recipient presents an adequate level of protection for personal data, we can rely on such

instrument. More information is available here: <https://cnpd.public.lu/en/legislation/droit-europ/union-europeenne/rgpd/chapitre-5.html>;

- By concluding a contract including the standard contractual clauses (SCCs) approved by the European Commission; More information is available here: <https://cnpd.public.lu/en/actualites/international/2021/06/modernisation-cct.html>; or
- By using any other mechanism meeting the requirements of the GDPR.

How long do we retain your data?

Smart Cube and its Affiliates have taken all reasonable measures to ensure that your personal data are processed for the minimum period necessary for the purposes set out in this Privacy Policy. The criteria to determine the duration during which we retain your personal data in connection with the Services are as follows:

- as long as we maintain a contractual relationship with you (e.g., where you are a partner or beneficiary of our Services, or you are lawfully included in our mailing list, and you have not unsubscribed);
- as long as your personal data are necessary in connection with the lawful purposes set out in this Privacy Policy, for which we have a valid legal basis;
- until the end of the calendar year following the end of the limitation period under applicable laws.

The main retention periods are the following (for Luxembourg):

- For prospects: up to 3 years from the date of collection or from our last contact,
- For clients:
 - o contractual and commercial communications: 10 years from the end of the contract,
 - o Payment and invoicing information: 10 years from the closure of the relevant financial year to comply the laws and regulations,
- For Professionals: 10 years as from the end of the Contract,
- For Users of websites: up to 3 years from the data collection,
- For cookies, please consult our Cookies Policy at the following address:
<https://www.smartcube.lu/mentions-legales-donnees-personnelles.html>.

Despite these retention periods, your data may be archived with restricted access for a further period for limited reasons as permitted by law (default payment, warranty, disputes, etc.). Smart Cube or the relevant Affiliates undertakes to delete or to anonymise your personal data upon expiry of the retention period as described above.

With whom do we share your data?

We communicate certain data to our technical partners on basis of your consent and/or to third parties in compliance with the Law. We share personal data with Data Processors within the limit of what is necessary for the performance of the services entrusted to them. In accordance with the terms of the contracts by which they are bound, Data Processors process data in compliance with GDPR on the basis of our instructions in relation to defined purposes and ensure to implement appropriate technical and organisational security measures.

We use the following categories of recipients to provide Services (a list of contracting entities can be shared upon request):

- Affiliated companies (accounting, finance, legal, IT, etc.),
- Database, sales administration, and market interaction software providers,
- Professionals equipment installers (craftsmen, technicians, electricians),
- Technical services providers (charging station operators, customer support);
- Credit reference and fraud prevention agencies to assess your ability to make payments, credit decisions, identity checks, fraud and money laundering prevention and account management. Credit reference agencies will record the search on your credit file whether or not your application has been successful. (There is no automated decision making based on that research).
- Survey provider and market research,

- IT/Cloud service providers,
- Payment/debt collection agencies,
- Facilities' service providers,- Subsidies' energy agencies and entities awarding the subsidies,
- Third party auditors, where applicable, to meet legal and regulatory obligations.
- Training service providers,

The data may be transmitted to third parties where this is required or expressly authorised by the Law, to enforce a provision of the law, or further to a judicial/regulatory decision if such disclosure is necessary in the context of an investigation or a legal proceeding and to protect the rights and interests, properties, safety and security of Smart Cube, and of each concerned Affiliates, our clients or other persons.

Changes to this Privacy Policy

The Privacy Policy will be updated regularly to consider legal, regulatory and operational changes. In case of important changes (e.g.: type of data collected, how we use it or for which purposes), we will highlight such change at the top of the Policy. You are invited to read the Privacy Policy regularly to be informed about its evolution and modifications. Where a change concerns processing based on your consent, we will ask for your consent again before that change takes effect.
